Rizzetta & Company

# Bobcat Trail
# Community Development District

## Board of Supervisors' Meeting
## November 5, 2024

**District Office:**
**9530 Marketplace Road, Suite 206**
**Fort Myers, Florida 33912**
**(239) 936-0913**

**www.bobcatcdd.com**

# BOBCAT TRAIL
# COMMUNITY DEVELOPMENT DISTRICT

Bobcat Trail Community Center, 1352 Bobcat Trail Blvd., North Port, FL 34288

www.bobcatcdd.com

| | | |
|---|---|---|
| **Board of Supervisors** | Jeffrey Brall | Chairperson |
| | Richard Burke | Vice Chairman |
| | Steven Ball | Assistant Secretary |
| | Michael SanAntonio | Assistant Secretary |
| | Paul Fisher | Assistant Secretary |
| **District Manager** | Belinda Blandon | Rizzetta & Company, Inc. |
| **District Counsel** | David Jackson | Persson, Cohen, Mooney, Fernandez & Jackson, P.A. |
| **District Engineers** | Robert Dvorak | BDI Engineers |

**All cellular phones must be placed on mute while in the meeting room.**

The Audience Comment portion of the agenda is where individuals may make comments on matters that concern the District. Individuals are limited to a total of three (3) minutes to make comments during this time.

Pursuant to provisions of the Americans with Disabilities Act, any person requiring special accommodations to participate in this meeting/hearing/workshop is asked to advise the District Office at least forty-eight (48) hours before the meeting/hearing/workshop by contacting the District Manager at (239) 936-0913. If you are hearing or speech impaired, please contact the Florida Relay Service by dialing 7-1-1, or 1-800-955-8771 (TTY) 1-800-955-8770 (Voice), who can aid you in contacting the District Office.

A person who decides to appeal any decision made at the meeting/hearing/workshop with respect to any matter considered at the meeting/hearing/workshop is advised that person will need a record of the proceedings and that accordingly, the person may need to ensure that a verbatim record of the proceedings is made including the testimony and evidence upon which the appeal is to be based.

# BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT

District Office · Ft. Myers, Florida · (239) 936-0913
Mailing Address · 3434 Colwell Avenue, Suite 200, Tampa, Florida 33614

www.bobcatcdd.com

October 28, 2024

**Board of Supervisors**
**Bobcat Trail Community**
**Development District**

## AGENDA

Dear Board Members:

The regular meeting of the Board of Supervisors of Bobcat Trail Community Development District will be held on **Tuesday, November 5, 2024, at 3:00 p.m.**, at the Bobcat Trail Community Center located at 1352 Bobcat Trail Blvd., North Port, FL 34288. The following is the agenda for this meeting:

**1. CALL TO ORDER/ROLL CALL**
**2. PLEDGE OF ALLEGIANCE**
**3. APPROVAL OF AGENDA**
**4. PUBLIC COMMENTS**
**5. BUSINESS ADMINISTRATION**
- A. Consideration of the Minutes of the Board of Supervisors' Meeting held on October 1, 2024 ..... Tab 1
- B. Consideration of the Minutes of the Board Workshop held on October 17, 2024 ..... Tab 2

**6. OLD BUSINESS**
None
**7. NEW BUSINESS**
- A. Resident Concerns

**8. CONSENT ITEMS**
- A. Acceptance of Committee Meeting Minutes ..... Tab 3
  1. Landscape Advisory Committee Minutes of September 17, 2024

**9. STAFF REPORTS**
- A. Field Manager (Under Separate Cover)
- B. District Engineer
- C. District Counsel
- D. District Manager
  1. Review of 3rd Quarter Website Audit..... Tab 4

**10. OTHER REPORTS**
- A. Infrastructure/Asset Management Committee (Board Workshop)
- B. Landscape Committee
- C. Newsletter Supervisor
- D. Finance Supervisor
- E. Lakes and Roads Supervisor
  - i. Solitude Waterway Inspection Report
  - ii. Solitude Monitoring Reports
- F. Maintenance Supervisor

G. Facilities Supervisor
H. HOA Updates
I. Commercial Properties

**11. PUBLIC COMMENTS**
**12. SUPERVISOR REQUESTS**
**13. ADJOURNMENT**

We look forward to seeing you at the meeting. In the meantime, if you have any questions, please do not hesitate to call us at (239) 936-0913.

Very truly yours,
*Belinda Blandon*
Belinda Blandon
Senior District Manager

cc: David Jackson: Persson, Cohen, Mooney, Fernandez & Jackson, P.A.

# Tab 1

# MINUTES OF MEETING

*Each person who decides to appeal any decision made by the Board with respect to any matter considered at the meeting is advised that the person may need to ensure that a verbatim record of the proceedings is made, including the testimony and evidence upon which such appeal is to be based.*

## BOBCAT TRAIL
## COMMUNITY DEVELOPMENT DISTRICT

The regular meeting of the Board of Supervisors of the Bobcat Trail Community Development District was held on **Tuesday, October 1, 2024, at 3:00 p.m.** at the Bobcat Trail Community Center, 1352 Bobcat Trail Blvd., North Port, FL 34288.

Present and constituting a quorum:

| | |
|---|---|
| Jeffrey Brall | **Board Supervisor, Chair** |
| Richard Burke | **Board Supervisor, Vice Chair** |
| Steven Ball | **Board Supervisor, Assistant Secretary** |
| Michael SanAntonio | **Board Supervisor, Assistant Secretary** |
| Paul Fisher | **Board Supervisor, Assistant Secretary** |

Also present were:

| | |
|---|---|
| Belinda Blandon | **District Manager, Rizzetta & Company, Inc.** |
| David Jackson | **District Counsel, Persson, Cohen, Mooney, Fernandez & Jackson, P.A.** |
| John Fowler | **Landscape/Aquatics Inspection Services** |
| Jeff Tamayo | **ArtisTree Landscape Maintenance & Design** |
| Audience | |

**FIRST ORDER OF BUSINESS** **Call to Order/Roll Call**

Ms. Blandon called the meeting to order and read roll call.

**SECOND ORDER OF BUSINESS** **Pledge of Allegiance**

The Board, Staff, and Audience recited the Pledge of Allegiance.

**THIRD ORDER OF BUSINESS** **Approval of Agenda**

Mr. Brall added Discussion of Speed Bumps at the Exit for the Front Gate and Approval of Sidewalk Budget in Conjunction with Master HOA to Old Business. He also added Resident Concerns to New Business and requested it be added to all agendas going forward.

On a Motion by Mr. Burke, seconded by Mr. Brall, with all in favor, the Board Approved the Agenda, for the Bobcat Trail Community Development District as amended.

DRAFT

**FOURTH ORDER OF BUSINESS** **Public Comments**

Ms. Dunne addressed the Board about her concerns with improper tennis court usage and maintenance. She asked the Board to consider putting fobs on the doors.

Mr. Etherten addressed the Board with questions about budget allocation for golf course maintenance. Mr. Fisher explained the line item to the Resident.

**FIFTH ORDER OF BUSINESS** **Consideration of the Minutes of the Board of Supervisors' Meeting held on September 03, 2024**

Ms. Blandon presented the Minutes of the Board of Supervisors meeting held on September 03, 2024, and asked if there were any questions, comments, and/or changes. There were none.

| |
|---|
| On a Motion by Mr. Brall, seconded by Mr. Burke, with all in favor, the Board Approved the Minutes of the Board of Supervisors Meeting held on September 03, 2024, for the Bobcat Trail Community Development District. |

**SIXTH ORDER OF BUSINESS** **Consideration of the Minutes of the Board Workshop held on September 09, 2024**

Ms. Blandon presented the Minutes of the Board Workshop held on September 09, 2024, and asked if there were any questions, comments, and/or changes. There were none.

| |
|---|
| On a Motion by Mr. Brall, seconded by Mr. Burke, with all in favor, the Board Approved the Minutes of the Board Workshop held on September 09, 2024, for the Bobcat Trail Community Development District. |

**SEVENTH ORDER OF BUSINESS** **Discussion of Speed Bumps for Front Gate**

Mr. SanAntonio discussed recent gate strikes at the front entrance. Mr. Ball advised that he researched the cost of adding speed bumps and determined that four-foot speed bumps and the signage required for DOT regulation would cost $448.55.

| |
|---|
| On a Motion by Mr. Brall, seconded by Mr. Burke, with all in favor, the Board Approved the Purchase and Installation of Four Four-foot Speed Bumps with Signage at the Front Gate in the Amount of $448.55, for the Bobcat Trail Community Development District. |

**EIGHTH ORDER OF BUSINESS** **Approval of Sidewalk Budget in Conjunction with Master HOA**

Mr. Ball discussed staining and power washing sidewalks and gutters. He advised

DRAFT

that the total cost of the project would be $84,278.00 but would be split with the master HOA. The CDD would be responsible for $42,139.00. Mr. Ball then advised that repairs are needed before work can be done, so he would like the issue to be tabled until he is able to determine all locations needing repair and the associated cost.

**NINTH ORDER OF BUSINESS** **Appointment of an Audit Committee and Scheduling the First Meeting of the Committee**

Ms. Blandon advised the Board that its last audit engagement was through fiscal year 2022-2023. She discussed the process of appointing an audit committee and advised that the first audit committee meeting would occur prior to the onset of the next regular meeting on Tuesday, November 5, 2024.

On a Motion by Mr. Fisher, seconded by Mr. Brall, with all in favor, the Board Appointed all its Existing Members as the Audit Committee for the District, for the Bobcat Trail Community Development District.

**TENTH ORDER OF BUSINESS** **Resident Concerns**

Mr. Ball discussed resident concerns regarding flooding and drainage with a retention area near the Lady Palm and Bailey Palm area. He advised that the District Engineer would be coming the following Thursday, and the area would be reviewed.

**ELEVENTH ORDER OF BUSINESS** **Discussion and Consideration of ArtisTree Storm Clean-up Costs**

Ms. Blandon discussed storm cleanup costs and the need to consider setting a not-to-exceed amount for ArtisTree that would allow them to perform any urgent and necessary cleanup required following a natural disaster. Ms. Blandon thoroughly reviewed ArtisTree's storm cleanup costs with the Board, and a brief discussion ensued. The Board agreed on a $10,000.00 not-to-exceed amount, and Mr. Jackson advised that he would prepare an addendum page to be added to the current agreement.

On a Motion by Mr. Brall, seconded by Mr. SanAntonio, with all in favor, the Board Approved a Not-to-Exceed Amount of $10,000.00 for ArtisTree Storm Cleanup Costs, for the Bobcat Trail Community Development District.

**TWELFTH ORDER OF BUSINESS** **Discussion and Consideration of Request from North Port Farmers Market for Use of Portion of Bobcat Village Center Rd.**

Ms. Blandon discussed the request received from Jake Reich regarding the Shop Local North Port Market wanting to use a portion of Bobcat Village Center Rd. She advised that the City Manager also sent a letter endorsing the market. Mr. Reich then provided the Board with an overview of the market. The Board asked questions regarding vendors and tents and Mr. Reich provided answers.

DRAFT

The Board had no objections with the market using the portion of Bobcat Village Center Rd. pending a certificate of insurance listing Bobcat Trail CDD as an additional insured.

On a Motion by Mr. SanAntonio, seconded by Mr. Brall, with all in favor, the Board Approved the Use of a Portion of Bobcat Village Center Rd. by North Port Farmers Market, Authorizing the Chairman to Execute the Affidavit, for the Bobcat Trail Community Development District.

**THIRTEENTH ORDER OF BUSINESS** **Acceptance of August 20, 2024 Landscape Committee Meeting Minutes**

Ms. Blandon presented the Landscape Committee Meeting Minutes from August 20, 2024, for Board acceptance.

On a Motion by Mr. Brall, seconded by Mr. SanAntonio, with all in favor, the Board Accepted the Landscape Committee Meeting Minutes of August 20, 2024, for the Bobcat Trail Community Development District.

**FOURTEENTH ORDER OF BUSINESS** **Staff Reports**

A. Field Manager

Mr. Fowler reviewed his report with the Board, beginning with the aquatics inspection section. He discussed areas of concern at multiple ponds. Mr. Fowler noted that an overflow area between ponds A2 and A1 may need to be more dug out. He also stated that dead pine trees on the lake bank of Pond E are dropping debris into the water, and a proposal is needed to remove the trees and the material in the pond. Mr. Fowler identified Pond F3 as the largest area of concern due to a Washingtonia Palm that has fallen in the pond, which needs to be removed. Mr. Fowler addressed algae growth, and although it is under control at most of the ponds, Ponds J1, J2, and J3 were called out as needing attention. He also spoke of the bulrush in Pond 1, which has been observed to be negatively affecting drainage. Mr. Fowler then stated he would work with Solitude Lake Management to review the lake and determine whether some bulrush needs to be removed.

Discussion ensued about the reoccurrence of trees falling on the golf course and trying to determine a way to get the issue under control. Mr. Jackson stated that a notice would need to be provided containing the specifics. It was then decided that Mr. Jackson would coordinate with Mr. Ball and Mr. Fowler to work on this.

Mr. Fowler then gave a brief review of the landscape inspection portion of his report. He advised that it was also sent to ArtisTree and that he was looking to do an inspection visit with them soon. He identified the monuments as the largest area of concern with the landscaping, noting that they require cleanup and consistency.

DRAFT

B. District Engineer
There was no report.

C. District Counsel
Mr. Jackson informed the Board that the deed from Bobcat Villas was received. He updated the Board on the workers compensation litigation and advised that it is still ongoing. Mr. Jackson discussed the property management transition and informed the Board that he had recently spoken with Inframark and was still awaiting documents from them.

The matter of LMP was discussed extensively between Mr. Jackson and the Board. Mr. Brall, Ms. Blandon, and Mr. Jackson agreed that they would schedule a date and time to discuss a response to LMP's letter.

D. District Manager
Ms. Blandon advised that the next Board of Supervisors meeting is scheduled for Tuesday, November 5, 2024, at 3:00 p.m.

She informed the Board that the insurance binders were received from Brown & Brown, pending the final invoice. Ms. Blandon also spoke to the Inframark transition and stated that she is still awaiting final bank reconciliations. Regarding Complete IT, Ms. Blandon informed the Board that it has been determined that there is no current service agreement, and they are currently on a month-to-month basis with them.

**FIFTEENTH ORDER OF BUSINESS Other Reports**

A. Infrastructure/Asset Management Committee (Board Workshop)
Mr. Brall asked that if the Board has anything to add to the agenda, please send it to him by the following Monday.

B. Landscape Committee
Mr. Brall advised that there was no report. He then welcomed ArtisTree.

C. Newsletter Supervisor
Mr. Fisher advised that anybody wanting to add anything should have it to him by the Friday following the IA meeting.

D. Finance Supervisor
There was no report.

E. Lakes and Roads Supervisor
Mr. Ball provided an update on the storm drain repairs. He determined five storm drains that needed full repairs and two that needed minor repairs. To complete the repairs required, Mr. Ball requested the Board approve an additional $2,100.00 for the project, for a total cost of $5,100.00.

DRAFT

| |
|---|
| On a Motion by Mr. Brall, seconded by Mr. Burke, with all in favor, the Board Approved the Additional $2,100.00 for Completion of the Storm Drain System Repairs, for the Bobcat Trail Community Development District. |

Mr. Ball then updated the Board on the progress of the ongoing lake project. He advised that the project was nearing completion, with possibly only a week left. Mr. Ball stated that the focus of the project is currently on the commercial side, but there are six locations within Bobcat that need additional care. He informed the Board that he will be working with Ms. Blandon to put phases three, four, and five of the road project out to bid. Mr. Ball clarified that this is a fully funded project.

He briefly spoke on the overall condition of the lakes and noted that Solitude treated algae he had observed. Mr. Ball shared that he was currently researching aeration remedies for some of the lakes and reviewing proposals.

F. Maintenance Supervisor

Mr. Burke spoke about the condition of the swimming pool in the aftermath of Hurricane Helene. He advised that although it was serviced and declared safe, a storm the previous night caused more debris to enter the pool. Mr. Burke informed the Board that the pool company was coming out to service it again. He discussed the PRV filters and advised that Hoover could not clean them because there is not a fresh water source at each. Mr. Burke then advised the Board that a timer for the pool was not an option due to health department regulations for public pools.

G. Facilities Supervisor

Mr. SanAntonio informed that City Wide would officially take over as the new cleaning company tomorrow. He also briefly discussed two recent gate strikes at the front entry.

H. HOA Updates

Mr. SanAntonio advised that the next meeting for the Master HOA will be October 15, 2024, at 10:00 a.m., and Fairway Commons will be October 22, 2024, at 10 a.m.

I. Commercial Properties

There were no updates for commercial properties.

**SIXTEENTH ORDER OF BUSINESS Public Comments**

A Resident addressed the Board about the issues with gate strikes at the front entry. He suggested that the Board fine offenders. Mr. Jackson advised that the Board has no fining power, only the ability to recoup costs.

A Resident asked the Board whether the two monument signs for the Golf Villas were CDD property. He explained that another resident wants to place solar lights there. The Board advised that they did not have an issue with that.

A Resident asked about the Farmers Market and whether it was a revenue

DRAFT

opportunity for the Board. The Board explained that it was not a revenue opportunity.

A Resident commented on debris pick-up and discussed outside vendors. The Resident noted that FEMA trucks arrive to assist with cleanup after a disaster.

A CERT update was provided which summarized how the team handled Hurricane Helene. It was noted that communication improved, and CERT was able to inspect areas as needed. An update was provided by the CERT team on Hurricane Helene: went well, improved communication, able to inspect areas needed. A first-aid training class sponsored by the North Port Fire Department was announced for February 12, 2025, and that more information will be released in the future.

There were no additional public comments.

**SEVENTEENTH ORDER OF BUSINESS Supervisor Requests**

Ms. Blandon asked if there were any Supervisor requests or comments. There were no Supervisor requests or comments.

**EIGHTEENTH ORDER OF BUSINESS Adjournment**

Ms. Blandon stated that there was no further business to come before the Board and asked for a motion to adjourn.

| |
|---|
| On a Motion by Mr. Brall, seconded by Mr. Burke, with all in favor the Board adjourned the meeting at 4:12 p.m., for the Bobcat Trail Community Development District. |

_____ _____

Secretary/Assistant Secretary Chairman/Vice Chairman

DRAFT

# Tab 2

# MINUTES OF INFRASTRUCTURE/ASSET WORKSHOP

*Each person who decides to appeal any decision made by the Board with respect to any matter considered at the meeting is advised that the person may need to ensure that a verbatim record of the proceedings is made, including the testimony and evidence upon which such appeal is to be based.*

## BOBCAT TRAIL
## COMMUNITY DEVELOPMENT DISTRICT

The workshop of the Infrastructure/Asset Committee of the Bobcat Trail Community Development District was held on **Thursday, October 17, 2024, at 3:00 p.m.** at the Bobcat Trail Community Center, 1352 Bobcat Trail Blvd., North Port, FL 34288.

Present and constituting a quorum:

| | |
|---|---|
| Jeffrey Brall | **Board Supervisor, Chair** |
| Richard Burke | **Board Supervisor, Vice Chair** |
| Steven Ball | **Board Supervisor, Assistant Secretary** |
| Michael SanAntonio | **Board Supervisor, Assistant Secretary** |
| Paul Fisher | **Board Supervisor, Assistant Secretary** |

**Call to Order/Roll Call**

Meeting was called to order at 3:00 pm by Jeff Brall. Present were Jeff Brall, Steve Ball, Dick Burke, Mike SanAntonio, and Paul Fisher.

**Pledge of Allegiance**

**Approval of Agenda**

Added to agenda under Old Business was LMP termination update. Under New Business, attorney contract review.

**Public Comments**

None.

**Old Business**

a. Review speedbump issues – the Board received a number of positive comments and one negative comment. Most importantly, since the speedbumps have been put down there have been no gate strikes.

b. Sidewalk project- Supervisor Ball is finalizing his review of sidewalk repairs needed. He will be getting cost estimates and timing.

c. LMP termination update. The Board was informed that a meeting was going to take place with Rizzetta and our attorney on October 18th. The Board asked that the management company send an update of the meeting.

DRAFT

**New Business**

a. Review CDD website pop-ups. Supervisor Ball showed us how they work and the opportunity for the Board to better communicate with the Bobcat Community.

b. Hurricane/Clean up issues: Artistry came in on the Friday following the Hurricane to clean up all loose lying debris from the Community side and the Commercial side.

c. Attorney contract review. The Board would like to investigate potential law firms and contracts of CDD's.

**Resident Concerns**

Residents concerned about lake restoration project using the easement along side of his home. He was shown through CDD documentation in Property policies that the CDD has the authority to use that easement.

**Supervisor Updates and Comments**

Some comments, but had been previously discussed.

**Public Comments**

None.

**Adjournment**

Adjournment at 3:55pm.

DRAFT

# Tab 3

# Bobcat Trail Landscape Committee Meeting Minutes
## Tuesday September 17, 2024
## Bobcat Trail Community Center
## 1352 Bobcat Trail Boulevard
## North Port Florida 34288

## 1. Call to Order

The meeting was called to order at 12 PM.

## 2. Roll Call/Statement of Quorum

Present for the meeting were Jeff Brall, Laura Filler, Val Duemmel, and Bill Hadovski representing the Bobcat Trail landscape Committee (BCTLC). Jay Grimaldi and Jeff Tamayo were present representing Artistree. LMP did not provide a representative at the meeting and there were no residents or members of the general public.

## 3. Approval/Adoption of Agenda

The September 17, 2024, Bobcat Trail Landscape Committee Meeting Agenda was approved as issued. (See Attachment 1).

## 4. Public Comment on Agenda Items

There was no public comment.

## 5. Meeting Minute Approval

The meeting minutes for the August 21, 2024, meeting were approved as issued.

## 6. Old Business

A. Historically as a means of trying to manage the landscape tasks the BCTLC in conjunction with the Landscape Contractor (LMP) used a list that was updated at

each monthly meeting. Initially this list was named the Sergio List named for the LMP account manager for the BCT Landscape Contract. This list eventually evolved into multiple lists that included action items from the Commercial Side and Miscellaneous Items. As a result of general discussions at the meeting it was decided that a new list, the Artistree Punch List (maybe Jeff's Punch List) would be created. It was agreed that this new list would be the result of an interactive process between the BCTLC and Artistree. In the process of creating the list and adding items to the list there would be discussions detailing the division of responsibility (DOR) for each organization for each item on the list.

In addition to the Artistree List there was discussion (explanation) on the role Rizzetta's John Fowler would play in the development of the Artistree workflow and the various reports and work lists. As part of their contract with the BCT CDD Rizzetta performs a monthly inspection and issues a monthly report for the CDD property. The inspection is performed by, and the report is prepared by Rizzetta's John Fowler. The reports for August and September are attached (see Attachment 2 and Attachment 3). This report concentrates on insuring that Artistree meets the Landscape Contracts requirements. Primarily the items detailed in the BCTLC YEARLY CONTRACT SCHEDULE GRID (see Attachment 4). Copies of this report will be provided to Artistree and members of the BCTLC. There will be no duplication of items, none of the items appearing on the John Fowler report will be listed on the Artistry Punch List and none of the items on the punch list will be found on the John Fowler list.

In addition to the Artistree List and the John Fowler list the BCTLC was preparing a list of items that LMP was unlikely to complete prior to the end of their contract. However, the Rizzetta Property Manager, has assured the BCTLC that LMP will complete all their required maintenance tasks prior to the termination of their contract.

In summary it was decide that going forward the BCTLC would work primarily to the Artistry Punch List and follow the John Fowler reports for contract items. The BCTLC area of responsibility would be in the details and fine tuning of the BCT CDD property.

B. Street Monuments, weeds are still evident among plants in and around monument beds.

C. General discussion related to the Commercial Side touched on the irrigation system, the trash, uneven to nonexistent edges to beds and tree circles, blocked sidewalks including fire hydrants and the poor condition of the turf along Bobcat Village Center Road.

D. Mulch application by Artistree.

(1) (Refer to Attachement 5) for contract change estimate.

(2) See (Attachment 10) for maps that will help Artistree layout the BCT mulch applications and mowing.

(3) Mulch will be delivered November 12.

(4) Artistree will install the mulch November 13 or November 14.

(5) Artistree has requested onsite support from the Landscape Committee to ensure mulch is applied in the correct places.

## 7. Landscape Lighting

A. Some lights are still not working, Commercial Lighting Inc. (Mark Curtain) is working problems as they are identified.

B. Monument Lighting

(1) For monuments without electrical power solar powered lights were suggested.

(2) Roshwey Solar Powered Spotlights (see attachment 5) were recommended.

(3) Motion made seconded and approved to purchase 12 Roshwey Light Sets.

(4) Purchased authorized through personal credit card reimbursed using the CDD Check Request Process (see Attachement 6). Val Duemmel action item.

## 8. CDD Wells

A. Detailed explanation of wells, old and new, coverage and timers were presented to Artistree.

B. A list of wells and coverage area maps and well location was provided to Aristree (See Attachment 7).

## 9. BCT LANDSCAPE DIVISION OF RESPONSIBILITY (DOR)

A. Bill H

(1) Commercial Side

(2) Toledo Blade East Side

(3) Under the Trees

(4) Woodhaven

B. Val D

(1) Street Monuments

C. Laura F

(1) Entrance/ Exit Monuments Toledo Blade West

(2) Entrance/Exit Monuments Toledo Blade East

(3) Exit Monument back gate Woodhaven

(4) Bobcat Trail Blvd Sidewalk to Sidewalk

(5) Bobcat Trail Boulevard Center Median Strip

(6) Community Center Driveway

(7) Community Center

(8) Solidary Palm Circle

(9) Area "F"

## 10. Five Year Plan

A. Shoval ready projects.

These are projects that are ready to go as soon as funding is made available, the Design is complete, and the cost estimates are current.

(1) Remediate Water Overflow/Washout in area between Golf Clubhouse and Pool, and update and refresh landscaping around the pool.

(2) Mulch /Sod enhancement project, install sod in in areas between beds and sidewalks to better hold mulch in place.

(3) Update and refresh landscaping in front of Entrance Way Guard House.

B. Park Benches, No action during past reporting period.

## 11. Miscellaneous Items

A. Rest Room Facilities for Landscape Crew.

B. Copy of Large Format landscape drawing currently in Chairman's custody. Bill H Action

C. CDD is evaluating locating a storage shed in the pool parking lot area.

D. Work on design for Shoval Ready Projects (SRP).

E. Attachment 8 provides a picture of a properly trimmed palm tree. For future reference the BCTLC would like to see the community palm trees maintained to this standard.

## 12. Budget

A. Though the budget for 2025 has been established there are expectations that additional funds could be received from the Golf Course.

(1) Golf Course funds owed were made part of Golf Course tax assessment.

(2) Taxes must be paid.

(3) Potentially 120K$ to 150K$ could be available.

## 13. New Business

A. Christmas.

(1) E-Mail Blast for Volunteers.

(2) Reach out to last year's volunteers.

(3) Organize and planning meeting at Community Center 11/4.

(4) Book Community Center for 11/4.

(5) Start decorating 11/18.

B. Bobcat Trail landscape Status

To documents Bobcat Trail Community Landscape Status the following action was requested

(1) Each BCTLC member inspect their area of responsibility prior to the next meeting.

(2) Take Pictures of non-compliance and detail each discrepancy.

(3) For future reference and potential legal claims.

## 14. Public Comment

No public or residents in attendance, no public comment.

## 15. Adjourn

Meeting adjourned at 3:05 PM.

# ATTACHMENTS

1. Approved Agenda for the September 17, 2024, Bob Cat Trail Landscape Committee Meeting.
2. Rizzetta's August Report.
3. Rizzetta's September Report.
4. BCTLC Yearly Contract Schedule Grid.
5. Roshway Solar lights Description.
6. CDD Check Request Form.
7. CDD Well Location and coverage map.
8. Properly Trimmed Palm Tree.
9. LMP Termination Letter.
10. Mowing and Mulch map.

# Tab 4




# Quarterly Compliance Audit Report

---

## Bobcat Trail

**Date:** October 2024 - 3rd Quarter
**Prepared for:** Sandra Demarco
**Developer:** Rizzetta
**Insurance agency:**

**Preparer:**
Susan Morgan - *SchoolStatus Compliance*
*ADA Website Accessibility and Florida F.S. 189.069 Requirements*

# Table of Contents

## Compliance Audit


Overview 2
*Compliance Criteria* 2
*ADA Accessibility* 2
Florida Statute Compliance 3
Audit Process 3


## Audit results


ADA Website Accessibility Requirements 4
Florida F.S. 189.069 Requirements 5


## Helpful information:


Accessibility overview 6
ADA Compliance Categories 7
Web Accessibility Glossary 11

# Compliance Audit Overview

The Community Website Compliance Audit (CWCA) consists of a thorough assessment of Florida Community Development District (CDD) websites to assure that specified district information is available and fully accessible. Florida Statute Chapter 189.069 states that effective October, 2015, every CDD in the state is required to maintain a fully compliant website for reporting certain information and documents for public access.

The CWCA is a reporting system comprised of quarterly audits and an annual summary audit to meet full disclosure as required by Florida law. These audits are designed to assure that CDDs satisfy all compliance requirements stipulated in Chapter 189.069.

# Compliance Criteria

The CWCA focuses on the two primary areas – website accessibility as defined by U.S. federal laws, and the 16-point criteria enumerated in Florida Statute Chapter 189.069.



## ADA Website Accessibility

Several federal statutes (American Disabilities Act, Sec. 504 and 508 of the Rehabilitation Act of 1973) require public institutions to ensure they are not discriminating against individuals on the basis of a person's disability. Community websites are required to conform to web content accessibility guidelines – WCAG 2.1, which is the international standard established to keep websites barrier-free and the recognized standard for ADA-compliance.



## Florida Statute Compliance

Pursuant to F.S. 189.069, every CDD is required to maintain a dedicated website to serve as an official reporting mechanism covering, at minimum, 16 criteria. The information required to report and have fully accessible spans: establishment charter or ordinance, fiscal year audit, budget, meeting agendas and minutes and more. For a complete list of statute requirements, see page 3.

# Audit Process

The Community Website Compliance Audit covers all CDD web pages and linked PDFs.* Following the WCAG 2.1 levels A, AA, and AAA for web content accessibility, a comprehensive scan encompassing 312 tests is conducted for every page. In addition, a human inspection is conducted to assure factors such as navigation and color contrasts meet web accessibility standards. See page 4 for complete accessibility grading criteria.

In addition to full ADA-compliance, the audit includes a 16-point checklist directly corresponding with the criteria set forth in Florida Statute Chapter 189.069. See page 5 for the complete compliance criteria checklist.

* **NOTE**: Because many CDD websites have links to PDFs that contain information required by law (meeting agendas, minutes, budgets, miscellaneous and ad hoc documents, etc.), audits include an examination of all associated PDFs. **PDF remediation** and ongoing auditing is critical to maintaining compliance.

# ADA Website Accessibility

**Result: PASSED**

## Accessibility Grading Criteria

| Passed | Description |
|---|---|
| Passed | **Website errors*** <br> **0** WCAG 2.1 errors appear on website pages causing issues** |
| Passed | **Keyboard navigation** <br> The ability to navigate website without using a mouse |
| Passed | **Website accessibility policy** <br> A published policy and a vehicle to submit issues and resolve issues |
| Passed | **Color contrast** <br> Colors provide enough contrast between elements |
| Passed | **Video captioning** <br> Closed-captioning and detailed descriptions |
| Passed | **PDF accessibility** <br> Formatting PDFs including embedded images and non-text elements |
| Passed | **Site map** <br> Alternate methods of navigating the website |

*Errors represent less than 5% of the page count are considered passing

**Error reporting details are available in your Campus Suite Website Accessibility dashboard

# Florida F.S. 189.069 Requirements

**Result: PASSED**

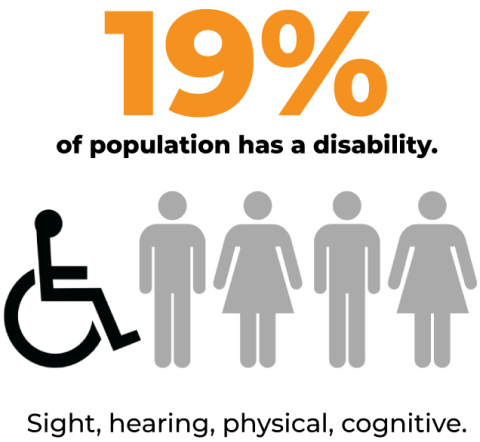
## Compliance Criteria

| Passed | Description |
|---|---|
| Passed | Full Name and primary contact specified |
| Passed | Public Purpose |
| Passed | Governing body Information |
| Passed | Fiscal Year |
| Passed | Full Charter (Ordinance and Establishment) Information |
| Passed | CDD Complete Contact Information |
| Passed | District Boundary map |
| Passed | Listing of taxes, fees, assessments imposed by CDD |
| Passed | Link to Florida Commission on Ethics |
| Passed | District Budgets (Last two years) |
| Passed | Complete Financial Audit Report |
| Passed | Listing of Board Meetings |
| Passed | Public Facilities Report, if applicable |
| Passed | Link to Financial Services |
| Passed | Meeting Agendas for the past year, and 1 week prior to next |

# Accessibility overview

## Everyone deserves equal access.

With nearly 1-in-5 Americans having some sort of disability – visual, hearing, motor, cognitive – there are literally millions of reasons why websites should be fully accessible and compliant with all state and federal laws. Web accessibility not only keeps board members on the right side of the law, but enables the entire community to access all your web content. The very principles that drive accessible website design are also good for those without disabilities.




## The legal and right thing to do

Several federal statutes (American Disabilities Act, Sec. 504 and 508 of the Rehabilitation Act of 1973) require public institutions to ensure they are not discriminating against individuals on the basis of a person's disability. Community websites are required to conform to web content accessibility guidelines, WCAG 2.1, the international standard established to keep websites barrier-free. Plain and simple, any content on your website must be accessible to everyone.



# ADA Compliance Categories

Most of the problems that occur on a website fall in one or several of the following categories.



## Contrast and colors

Some people have vision disabilities that hinder picking up contrasts, and some are color blind, so there needs to be a distinguishable contrast between text and background colors. This goes for buttons, links, text on images – everything. Consideration to contrast and color choice is also important for extreme lighting conditions.

***Contract checker:*** *http://webaim.org/resources/contrastchecker*



## Using semantics to format your HTML pages

When web page codes are clearly described in easy-to-understand terms, it enables broader sharing across all browsers and apps. This 'friendlier' language not only helps all the users, but developers who are striving to make content more universal on more devices.



## Text alternatives for non-text content

Written replacements for images, audio and video should provide all the same descriptors that the non-text content conveys. Besides helping with searching, clear, concise word choice can make vivid non-text content for the disabled.

***Helpful article:*** *http://webaim.org/techniques/alttext*



## Ability to navigate with the keyboard

Not everyone can use a mouse. Blind people with many with motor disabilities have to use a keyboard to make their way around a website. Users need to be able to interact fully with your website by navigating using the tab, arrows and return keys only. A “skip navigation” option is also required. Consider using WAI-ARIA for improved accessibility, and properly highlight the links as you use the tab key to make sections.

***Helpful article:*** *www.nngroup.com/articles/keyboard-accessibility*
***Helpful article:*** *http://webaim.org/techniques/skipnav*



## Easy to navigate and find information

Finding relevant content via search and easy navigation is a universal need. Alt text, heading structure, page titles, descriptive link text (no ‘click here’ please) are just some ways to help everyone find what they’re searching for. You must also provide multiple ways to navigate such as a search and a site map.

***Helpful article:*** *http://webaim.org/techniques/sitetools/*



## Properly formatting tables

Tables are hard for screen readers to decipher. Users need to be able to navigate through a table one cell at a time. In addition to the table itself needing a caption, row and column headers need to be labeled and data correctly associated with the right header.

***Helpful article:*** *http://webaim.org/techniques/tables/data*



## Making PDFs accessible

PDF files must be tagged properly to be accessible, and unfortunately many are not. Images and other non-text elements within that PDF also need to be ADA-compliant. Creating anew is one thing; converting old PDFs – called PDF remediation – takes time.

***Helpful articles:*** *http://webaim.org/techniques/acrobat/acroba*t



## Making videos accessible

Simply adding a transcript isn't enough. Videos require closed captioning and detailed descriptions (e.g., who's on-screen, where they are, what they're doing, even facial expressions) to be fully accessible and ADA compliant.

***Helpful article:*** *http://webaim.org/techniques/captions*



## Making forms accessible

Forms are common tools for gathering info and interacting. From logging in to registration, they can be challenging if not designed to be web-accessible. How it's laid out, use of labels, size of clickable areas and other aspects need to be considered.

***Helpful article:*** *http://webaim.org/techniques/forms*



## Alternate versions

Attempts to be fully accessible sometimes fall short, and in those cases, alternate versions of key pages must be created. That is, it is sometimes not feasible (legally, technically) to modify some content. These are the 'exceptions', but still must be accommodated.



## Feedback for users

To be fully interactive, your site needs to be able to provide an easy way for users to submit feedback on any website issues. Clarity is key for both any confirmation or error feedback that occurs while engaging the page.



## Other related requirements

***No flashing***

Blinking and flashing are not only bothersome, but can be disorienting and even dangerous for many users. Seizures can even be triggered by flashing, so avoid using any flashing or flickering content.

***Timers***

Timed connections can create difficulties for the disabled. They may not even know a timer is in effect, it may create stress. In some cases (e.g., purchasing items), a timer is required, but for most school content, avoid using them.

***Fly-out menus***

Menus that fly out or down when an item is clicked are helpful to dig deeper into the site's content, but they need to be available via keyboard navigation, and not immediately snap back when those using a mouse move from the clickable area.

***No pop-ups***

Pop-up windows present a range of obstacles for many disabled users, so it's best to avoid using them altogether. If you must, be sure to alert the user that a pop-up is about to be launched.

# Web Accessibility Glossary

| | |
|---|---|
| Assistive technology | Hardware and software for disabled people that enable them to perform tasks they otherwise would not be able to perform (e..g., a screen reader) |
| WCAG 2.0 | Evolving web design guidelines established by the W3C that specify how to accommodate web access for the disabled |
| 504 | Section of the Rehabilitation Act of 1973 that protects civil liberties and guarantees certain rights of disabled people |
| 508 | An amendment to the Rehabilitation Act that eliminates barriers in information technology for the disabled |
| ADA | American with Disabilities Act (1990) |
| Screen reader | Software technology that transforms the on-screen text into an audible voice. Includes tools for navigating/accessing web pages. |
| Website accessibility | Making your website fully accessible for people of all abilities |
| W3C | World Wide Web Consortium – the international body that develops standards for using the web |